

Importantly, the Employment Agreement does not mention arbitration, dispute resolution, waiver of jury trial, or the forum for resolving employment-related disputes. Instead, it addresses substantive employment terms such as Plaintiff's position, duties, compensation, confidentiality obligations, and at-will employment status. Because the integration clause is limited to the "subjects described herein," it does not supersede the separately executed Arbitration Agreement.

Plaintiff's reliance on *Grey v. American Management Services* (2012) 204 Cal.App.4th 803 is misplaced. Unlike *Grey*, where the superseding agreement itself contained a narrower arbitration provision, the Employment Agreement here is entirely silent regarding arbitration and dispute resolution. Moreover, the integration clause is expressly limited to the "subjects described herein."

Not Properly Authenticated?

Plaintiff attests that she never received, reviewed, or signed the purported Arbitration Agreement and challenges the authenticity of the signature appearing on the document. (Milman Decl., ¶¶ 3–5.) Milman declares under penalty of perjury that while the signature on the 8/22/22 Employment Agreement "is unmistakably my own", the signature contained in the purported Arbitration Agreement "does not resemble the way I sign my name." (Milman Decl., ¶ 6.)

Interestingly, the signatures on the employment agreement and the arbitration agreement appear more similar to each other than the signature now presented in Plaintiff's 5/1/26 declaration. Further, multiple signatures purporting to be from Plaintiff have been presented and Defendants submitted a declaration from Stephen Van Hooser, custodian of personnel and employment records, attesting that he reviewed Plaintiff's personnel file maintained in the ordinary course of business, that it was Defendants' regular practice to provide new hires with the Arbitration Agreement and related onboarding documents, and that the signed Arbitration Agreement was contained in Plaintiff's personnel file. (Van Hooser Decl., ¶¶ 5–8, Exhs. A-B.) Defendants further authenticated the

Arbitration Agreement by comparing Plaintiff's signature on the agreement with numerous additional documents contained in Plaintiff's personnel file, including approximately 25 additional signature exemplars. (Supp. Van Hooser Decl., ¶ 2, Exh. 1.)

On the record before the court, Plaintiff's conclusory denial and claimed lack of recollection are insufficient to overcome Defendants' prima facie showing authenticating the Arbitration Agreement. To the extent Plaintiff contends the signature is forged or otherwise inauthentic, Plaintiff has not submitted sufficient evidence showing such.

Enforcement by Non-Signatory?

Plaintiff also argues that Defendant Chapters Capistrano, LLC cannot enforce the Arbitration Agreement because it is not a named party to the agreement. Plaintiff argues the agreement refers only to "the Company," an undefined term, and Defendants' evidence identifies the employer as "Sunshine Behavioral Health Group dba, Chapters Capistrano," not as separate legal entities.

Under the doctrine of equitable estoppel, a nonsignatory may enforce an arbitration agreement where the plaintiff's claims against the nonsignatory are dependent upon, founded in, or inextricably intertwined with the obligations imposed by the agreement containing the arbitration clause. (*Goldman v. KPMG LLP* (2009) 173 Cal.App.4th 209, 217-219.) Equitable estoppel applies where a plaintiff alleges substantially interdependent and concerted misconduct by both a signatory and nonsignatory arising from the same underlying contractual relationship. (*Boucher v. Alliance Title Co., Inc.* (2005) 127 Cal.App.4th 262, 271-273.)

Here, Plaintiff's claims against Defendants arise from the same alleged employment relationship and underlying conduct, and Plaintiff alleges both entities jointly employed her. (FAC, ¶¶ 1, 13-14, 17.) Because the claims are intertwined with the employment relationship governed by the Arbitration Agreement, Chapter Capistrano, LLC may enforce the Arbitration Agreement.